

Planning Agreement

The Council of the City of Sydney ABN 22 636 550 790 and
Erskineville Investments Pty Ltd ACN 659 572 255

For 155 Mitchell Road, Erskineville

Reference: S157607

CONTENTS

CLAUSE	PAGE
1. INTERPRETATION	3
1.1 Definitions	3
1.2 Rules for interpreting this document	7
1.3 Landowner is the developer	8
2. APPLICATION OF THE ACT AND THE REGULATION	8
2.1 Application of this document	8
2.2 Public Benefit to be made by the Landowner	8
2.3 Application of the Act	8
2.4 Landowner still liable to pay the Affordable Housing Contribution	8
2.5 City rights	8
2.6 Explanatory note	9
3. OPERATION OF THIS PLANNING AGREEMENT	9
3.1 Commencement	9
4. WARRANTIES	9
4.1 Mutual warranties	9
4.2 Landowner warranties	9
5. PUBLIC BENEFIT	10
5.1 Landowner to provide Public Benefits	10
5.2 Non-completion of Public Benefit	10
6. COMPLETION OF DEVELOPER'S WORKS	10
6.1 Date of Completion	10
6.2 Landowner Completion Notice	10
6.3 Inspection by the City	10
7. INDEMNITY	11
8. DEFECTS LIABILITY	11
9. REGISTRATION	11
9.1 Registration of this document	11
9.2 Release of this document	12
10. ENFORCEMENT	12
10.1 Document to remain on the titles to the Land	12
10.2 Issue of Subdivision Certificate	12
11. DISPUTE RESOLUTION	13
11.1 Application	13
11.2 Negotiation	13
11.3 Not use information	13
11.4 Condition precedent to litigation	13
11.5 Summary or urgent relief	14
12. TAXES AND GST	14
12.1 Responsibility for Taxes	14

12.2	GST free supply	14
12.3	Supply subject to GST	14
13	DEALINGS	15
13.1	Dealing by the City.....	15
13.2	Dealing by the Landowner	15
14	TERMINATION	15
15	CONFIDENTIALITY, DISCLOSURES AND PRIVACY	16
15.1	Use and disclosure of Confidential Information	16
15.2	Disclosures to personnel and advisers	16
15.3	Disclosures required by law	16
15.4	Receiving party's return or destruction of documents	17
15.5	Security and control	17
15.6	Media releases.....	17
15.7	Privacy	17
16	NOTICES	17
17	MODERN SLAVERY	18
18	GENERAL	20

SCHEDULES

1	Agreement Details	23
2	Requirements under the Act and Regulation (clause 2)	24
3	Public Benefit (clause 5).....	26

ANNEXURES

Annexure A.....	35
Annexure B.....	37
Annexure C.....	38
Annexure D.....	42

THIS PLANNING AGREEMENT is made on

2026.

BETWEEN:

- (1) **The Council of the City of Sydney** ABN 22 636 550 790 of Town Hall House, 456 Kent Street, SYDNEY NSW 2000 (the **City**); and
- (2) **Erslev Investments Pty Ltd** ACN 659 572 255 of Level 2, 66 Wentworth Avenue, Surry Hills NSW 2010 (the **Landowner**).

BACKGROUND

- (A) The Landowner owns the Land which sits within the land known as the Ashmore Estate (Ashmore Estate Land).
- (B) The Ashmore Estate Land has the benefit of a stage 1 development consent D/2015/966 (Original Consent). The Original Consent is associated with a planning agreement entered into on 25 July 2017, as amended by a deed of variation dated 12 September 2019, between the City and the original developer of the Ashmore Estate Land which provides for delivery of a range of public works, including a new park, roads, pedestrian ways and stormwater infrastructure (Original Planning Agreement). The Original Planning Agreement, in part, applies to the Land.
- (C) Development applications were lodged, with the Landowner's consent, with the City to amend the Original Consent as far as it relates to the Land. The Landowner consents to the development applications and to the Development on the Land.
- (D) The Landowner has offered to enter into this document with the City to provide the Public Benefit on the terms of this document.

THE PARTIES AGREE AS FOLLOWS:

1. INTERPRETATION

1.1 Definitions

The following definitions apply in this document.

Act means the *Environmental Planning and Assessment Act 1979 (NSW)*.

Affordable Housing has the same meaning as in the Act.

Affordable Housing Building means the independent building in stratum known as Building H on the Land that contains the Affordable Housing Dwellings.

Affordable Housing Contribution means the contribution payable by the Landowner for the purpose of affordable housing as described in clause 7.13 of the Sydney LEP.

Affordable Housing Covenant means the public positive covenant by a prescribed authority pursuant to section 88E of the *Conveyancing Act 1919 (NSW)* on the terms set out in Annexure D.

Affordable Housing Dwellings means the units or lots of Affordable Housing contained in the Affordable Housing Building, designed, constructed and fitted out by the Landowner on the Land as part of the Development to meet the requirements of the Onsite Affordable Housing.

Affordable Housing Restriction means the restriction on the use of land by a prescribed authority pursuant to section 88E of the *Conveyancing Act 1919 (NSW)* on the terms set out in Annexure A.

Attributed Value means the value the City and the Landowner agree is to be attributed to the Public Benefit as at the date of this document, as set out in clause 1 of Schedule 3 of this document.

Authorisation means:

- (a) an approval, authorisation, consent, declaration, exemption, permit, licence, notarisation or waiver, however it is described, and including any condition attached to it; and
- (b) in relation to anything that could be prohibited or restricted by law if a Government Agency acts in any way within a specified period, the expiry of that period without that action being taken,

including any renewal or amendment.

Business Day means a day (other than a Saturday, Sunday or gazetted public holiday) on which banks are open for general banking business in Sydney, Australia.

City's Policies means all formally adopted policies and procedures relevant to the provision of the Public Benefit, as notified by the City in writing to the Landowner.

City's Representative means the person named in Item 3 of Schedule 1 or his/her delegate.

Community Housing Provider means the community housing provider nominated by the Landowner, and with which the Landowner will enter into the Community Housing Provider Agreements, that is registered in NSW under the Community Housing Providers Act, and that has a Tier 1 registration category as those tiers are defined in the Registrar of Community Housing NSW Local Scheme Tier Guidelines.

Community Housing Provider Agreements means the Stage 1 Community Housing Provider Agreement and the Stage 2 Community Housing Provider Agreement.

Community Housing Providers Act means the *Community Housing Providers (Adoption of National Law) Act 2012* as amended by the Community Housing Providers (Adoption of National Law (Amendment Bill) 2025.

Community Housing Provider's Representative means the person nominated by the Community Housing Provider in the Stage 1 Community Housing Provider Agreement or his/her delegate.

Completion means the point at which:

the Developer's Works are complete except for minor defects:

- (a) the existence of which do not prevent the Developer's Works being reasonably capable of being used for their intended purpose;
- (b) which the Landowner has grounds for not promptly rectifying; and
- (c) rectification of which will not affect the immediate and convenient use of the Developer's Works for their intended purpose.

Completion Notice means a notice issued by the Landowner in accordance with clause 6.2.

Concept Development Application means the same as a concept development application under the Act.

Confidential Information means:

- (a) information of a party (**disclosing party**) that is:
 - (i) made available by or on behalf of the disclosing party to the other party (**receiving party**), or is otherwise obtained by or on behalf of the receiving party; and
 - (ii) by its nature confidential or the receiving party knows, or ought reasonably to know, is confidential.

Confidential Information may be made available or obtained directly or indirectly, and before, on or after the date of this document.

Confidential Information does not include information that:

- (a) is in or enters the public domain through no fault of the receiving party or any of its officers, employees or agents;
- (b) is or was made available to the receiving party by a person (other than the disclosing party) who is not or was not then under an obligation of confidence to the disclosing party in relation to that information; or
- (c) is or was developed by the receiving party independently of the disclosing party and any of its officers, employees or agents.

Construction Certificate has the same meaning as in the Act.

Corporations Act means the *Corporations Act 2001* (Cth).

DBP Act means the *Design and Building Practitioners Act 2020* (NSW).

DBP Regulation means the *Design and Building Practitioners Regulation 2021* (NSW).

Dealing means selling, transferring, assigning, novating, charging, or encumbering and, where appearing, **Deal** has the same meaning.

Defect means any error, omission, defect, non-conformity (as defined by any applicable Australian Standard), discrepancy, shrinkage (as defined by any applicable Australian Standard), or other fault in the Developer's Works or any other matter which prevents the Developer's Works from complying with the terms of this document.

Defects Liability Period means in relation to the Public Benefit, the period of 12 months from the date on which the Developer's Works reach Completion.

Developer's Works means the design, construction and fit-out of the Affordable Housing Dwellings which forms the Public Benefit described as "Onsite Affordable Housing" in clause 1 of Schedule 3.

Development means the development of the Land described at Item 2 of Schedule 1.

Development Application means the development applications identified in Item 5 of Schedule 1 and includes all plans, reports models, photomontages, material boards (as amended supplemented) submitted to the consent authority before the determination of that Development Application.

Development Consent means any consent granted to the Development Application for the Development and includes all modifications made under section 4.55 of the Act.

Dispute means any dispute or difference between the parties arising out of, relating to or in connection with this document, including any dispute or difference as to the formation, validity, existence or termination of this document.

Environmental Laws means all laws and legislation relating to environmental protection, building, planning, health, safety or work health and safety matters and includes the following:

- (a) the *Work Health and Safety Act 2011* (NSW);
- (b) the *Protection of the Environment Operations Act 1997* (NSW); and
- (c) the *Contaminated Land Management Act 1997* (NSW).

Government Agency means:

- (a) a government or government department or other body;
- (b) a governmental, semi-governmental or judicial person; or
- (c) a person (whether autonomous or not) who is charged with the administration of a law.

Gross Floor Area (GFA) has the meaning given to that term in the *Sydney Local Environment Plan 2012* in effect at the date of this document.

GST means the same as in the GST Act.

GST Act means *A New Tax System (Goods and Services Tax) Act 1999* (Cth).

Housing SEPP means the State Environmental Planning Policy (Housing) 2021.

Land means the land described in Item 1 of Schedule 1 of this document.

Landowner means Erskineville Investments Pty Ltd, or, to the extent that this document is novated to another entity pursuant to clause 13, that entity.

Landowner's Representative means the person named in Item 4 of Schedule 1 or his/her delegate.

Laws means all applicable laws, regulations, industry codes and standards, including all Environmental Laws.

Occupation Certificate has the same meaning as in the Act.

Onsite Affordable Housing means the Public Benefit described as "Onsite Affordable Housing" in clause 1 of Schedule 3.

Personal Information means:

- (a) personal information within the meaning of the *Privacy and Personal Information Protection Act 1998* (NSW);
- (b) health information within the meaning of the *Health Records and Information Privacy Act 2002* (NSW); and
- (c) any information which does not fall within the scope of paragraphs (a) and (b) above, but is personal information within the meaning of the *Privacy Act 1988* (Cth).

Personnel means the Landowner's officers, employees, agents, contractors or subcontractors, or the Landowner's officer, employees, agents, contractors or subcontractors, as the context requires.

Privacy Laws means the *Privacy Act 1988* (Cth), the *Privacy and Personal Information Protection Act 1998* (NSW), the *Health Records and Information Privacy Act 2002* (NSW); the *Spam Act 2003* (Cth), the *Do Not Call Register Act 2006* (Cth) and any other applicable legislation, regulations, guidelines, codes and the City's Policies relating to the handling of Personal Information.

Public Benefit means the provision of the benefit to the community by the Landowner in the form and at the times specified in Schedule 3.

RAB (CEP) Act means the *Residential Apartment Buildings (Compliance and Enforcement Powers) Act 2020* (NSW).

RAB (CEP) Regulation means the *Residential Apartment Buildings (Compliance and Enforcement Powers) Regulation 2020* (NSW).

Regulation means the *Environmental Planning and Assessment Regulation 2021* (NSW).

Stage 1 Community Housing Provider Agreement means the legally binding deed of agreement between the Landowner and the Community Housing Provider to be entered into at the time of the execution of this planning agreement outlining the key terms of the Stage 2 Community Housing Provider Agreement, as further described in clause 3.2 of Schedule 3 and attached to this document as Annexure C.

Stage 2 Community Housing Provider Agreement means the legally binding agreement between the Landowner and Community Housing Provider that provides for the management of the Affordable Housing Building by the Community Housing Provider to operate as Affordable Housing and that meets the requirements set out in clause 3.3 of Schedule 3.

Subdivision of Land has the same meaning as in the Act.

Sydney LEP means *Sydney Local Environmental Plan 2012* (NSW).

Tax means a tax, levy, duty, rate, charge, deduction or withholding, however it is described, that is imposed by law or by a Government Agency, together with any related interest, penalty, fine or other charge.

Total Floor Area (TFA) has the meaning given to that term in clause 7.13 of the *Sydney Local Environmental Plan 2012* in effect at the date of this document.

1.2 **Rules for interpreting this document**

Headings are for convenience only, and do not affect interpretation. The following rules also apply in interpreting this document, except where the context makes it clear that a rule is not intended to apply.

(a) A reference to:

- (i) a legislative provision or legislation (including subordinate legislation) is to that provision or legislation as amended, re-enacted or replaced, and includes any subordinate legislation issued under it;
- (ii) a document (including this document) or agreement, or a provision of a document (including this document) or agreement, is to that document, agreement or provision as amended, supplemented, replaced or novated;
- (iii) a party to this document or to any other document or agreement includes a permitted substitute or a permitted assign of that party;
- (iv) a person includes any type of entity or body of persons, whether or not it is incorporated or has a separate legal identity, and any executor, administrator or successor in law of the person;
- (v) anything (including a right, obligation or concept) includes each part of it;
- (vi) a singular word includes the plural, and vice versa;
- (vii) a word which suggests one gender includes the other genders;
- (viii) if a word or phrase is defined, any other grammatical form of that word or phrase has a corresponding meaning;
- (ix) if an example is given of anything (including a right, obligation or concept), such as by saying it includes something else, the example does not limit the scope of that thing;
- (x) a reference to **including** means "including, without limitation";
- (xi) a reference to **dollars** or **\$** is to an amount in Australian currency;

- (xii) a reference to **this document** includes the agreement recorded by this document; and
- (xiii) words defined in the GST Act have the same meaning in clauses about GST.
- (b) This document is not to be interpreted against the interests of a party merely because that party proposed this document or some provision in it or because that party relies on a provision of this document to protect itself.

1.3 **Landowner is the developer**

The parties acknowledge and agree that for the purposes of this document the Landowner is the developer.

2. **APPLICATION OF THE ACT AND THE REGULATION**

2.1 **Application of this document**

This document is a planning agreement within the meaning of section 7.4 of the Act and applies to:

- (a) the Land; and
- (b) the Development.

2.2 **Public Benefit to be made by the Landowner**

Clause 5 and Schedule 3 set out the details of the:

- (a) Public Benefit to be delivered by the Landowner;
- (b) time or times by which the Landowner must deliver the Public Benefit; and
- (c) manner in which the Landowner must deliver the Public Benefit.

2.3 **Application of the Act**

- (a) The application of sections 7.11 and 7.12 of the Act (if applicable) are excluded to the extent set out in Items 5 and 6 of Schedule 2 to this document.
- (b) The application of Division 7.1, Subdivision 4 of the Act is not excluded.

2.4 **Landowner still liable to pay the Affordable Housing Contribution**

For the avoidance of doubt and notwithstanding any exclusion of sections 7.11, 7.12 and 7.24 of the Act pursuant to Items 5 and 6 of Schedule 2 of this document, the Landowner remains liable for the payment of the Affordable Housing Contribution under the Development Consent.

2.5 **City rights**

This document does not impose an obligation on the City to:

- (a) grant Development Consent for the Development; or
- (b) exercise any function under the Act in relation to a change to an environmental planning instrument, including the making or revocation of an environmental planning instrument.

2.6 **Explanatory note**

The explanatory note prepared in accordance with clause 205 of the Regulation must not be used to assist in construing this document.

3. **OPERATION OF THIS PLANNING AGREEMENT**

3.1 **Commencement**

This document will commence on the date of execution of this document by all parties to this document.

4. **WARRANTIES**

4.1 **Mutual warranties**

Each party represents and warrants that:

- (a) **(power)** it has full legal capacity and power to enter into this document and to carry out the transactions that it contemplates;
- (b) **(corporate authority)** it has taken all corporate action that is necessary or desirable to authorise its entry into this document and to carry out the transactions contemplated;
- (c) **(Authorisations)** it holds each Authorisation that is necessary or desirable to:
 - (i) enable it to properly execute this document and to carry out the transactions that it contemplates;
 - (ii) ensure that this document is legal, valid, binding and admissible in evidence; or
 - (iii) enable it to properly carry on its business as it is now being conducted,and it is complying with any conditions to which any of these Authorisations is subject;
- (d) **(documents effective)** this document constitutes its legal, valid and binding obligations, enforceable against it in accordance with its terms (except to the extent limited by equitable principles and laws affecting creditors' rights generally), subject to any necessary stamping or registration;
- (e) **(solvency)** there are no reasonable grounds to suspect that it will not be able to pay its debts as and when they become due and payable; and
- (f) **(no controller)** no controller is currently appointed in relation to any of its property, or any property of any of its subsidiaries.

4.2 **Landowner warranties**

The Landowner warrants to the City that, at the date of this document:

- (a) it is the registered proprietor of the Land;
- (b) it is legally entitled to obtain all consents and approvals that are required by this document and do all things necessary to give effect to this document;
- (c) it is not aware of any matter which may materially affect the Landowner's ability to perform its obligations under this document.

5. PUBLIC BENEFIT

5.1 Landowner to provide Public Benefits

The Landowner must, at its cost and risk, provide the Public Benefit to the City in accordance with this document.

5.2 Non-completion of Public Benefit

- (a) If the Landowner makes a request by notice in writing not to complete the Public Benefit (or any part of the Public Benefit) the City may:
 - (i) permit the Landowner not to complete the Public Benefit (or any part of the Public Benefit) by issuing a notice in writing to the Landowner stating that completion of the items identified in that notice is not required to fulfil the Landowner's obligations under this document; and/or
 - (ii) modify the Public Benefit to reasonably achieve the objectives identified in the Development Consent and this document.
- (b) Except in a scenario as contemplated in clause 5.2(a) above, or by any other agreement of the parties, if the Landowner fails to complete the whole of the Public Benefit in the form and to the standards required under the Development Consent or this document then the City may:
 - (i) modify the Public Benefit to reasonably achieve the objectives identified in the Development Consent and this document, ;and/or
 - (ii) notify the Registrar of Community Housing of the Landowner's failure to complete the Public Benefit under the Community Housing Providers Act for investigation and action.

6. COMPLETION OF DEVELOPER'S WORKS

6.1 Date of Completion

The Landowner must ensure that the Developer's Works reach Completion on or before the date or milestone referred to in clause 1 of Schedule 3 of this document.

6.2 Landowner Completion Notice

When, in the reasonable opinion of the Landowner, the Developer's Works have reached Completion, the Landowner must notify the City's Representative and the Community Housing Provider's Representative in writing and must include in that notice:

- (a) a statement from the person with direct responsibility and supervision of that work that in their opinion the Developer's Works have reached Completion;
- (b) an "as built survey" which will verify the square metres actually achieved through construction in accordance with condition 15 of the Development Consent; and
- (c) a written statement from the Community Housing Provider confirming the Developer's Works are fit for purpose and the Affordable Housing requirements as set out in clause 2.2 of Schedule 3 and the relevant provisions of the Community Housing Provider Agreements have been complied with.

6.3 Inspection by the City

- (a) The City's Representative and the Community Housing Provider's Representative must inspect the Developer's Works within 5 Business Days of the date that the Completion Notice is received by the City. The City's Representative may refuse to complete the inspection until the Completion Notice has been issued with all required documentation

attached in accordance with clause 6.2. Within 5 Business Days of the date of the inspection by the City's Representative, the City must by written notice to the Landowner:

- (i) state that Completion has been achieved;
 - (ii) state that Completion has not been achieved and, if so, identify the Defects (excluding any minor and cosmetic Defects that do not affect use of the Developer's Works for their intended purposes) which, in the opinion of the City's Representative and the Community Housing Provider's Representative, prevent Completion; or
 - (iii) issue a notice under clause 5.2(a).
- (b) Nothing in this clause 6.3, or any notice issued under this clause 6.3, will:
- (i) reduce or waive in any manner Landowner's responsibility to deliver the Developer's Works in accordance with this document; or
 - (ii) create any liability for the City in relation to any defective aspect of the Developer's Works.

7. INDEMNITY

7.1 The Landowner indemnifies the City from and against any damage, expense, cost, loss or liability suffered or incurred by the City, in respect of the Affordable Housing Building, arising out of or in connection with:

- (a) the carrying out of the Developer's Works; or
- (b) any act or omission of the Landowner (including its Personnel);

except to the extent that such damage, expense, cost, loss or liability is caused by the negligence or wilful misconduct of the City (or any person engaged by the City).

7.2 For clarity this indemnity:

- (a) applies notwithstanding that the Landowner retains ownership and control of the Land and any buildings the subject of the Developer's Works; and
- (b) is limited to losses suffered or incurred by the City incurred in connection with claims brought against, or liabilities incurred by, the City arising from the matters set out in clauses 7.1(a) and 7.1(b).

8. DEFECTS LIABILITY

Until the expiry of the Defects Liability Period the parties acknowledge and agree that the Landowner is obligated to rectify any Defect during the Defects Liability Period.

9. REGISTRATION

9.1 **Registration of this document**

- (a) The Landowner:
 - (i) consents to the registration of this document at the NSW Land Registry Services on the certificate of title to the Land;
 - (ii) warrants that it has obtained all consents to the registration of this document on the certificate of title to the Land; and

- (iii) must within 10 Business Days of a written request from the City do all things necessary to allow the City to register this document on the certificate of title to the Land, including but not limited to:
 - (A) producing any documents or letters of consent required by the Registrar-General of the NSW Land Registry Services; and
 - (B) providing the City with a cheque or electronic funds transfer for registration fees payable in relation to registration of this document at NSW Land Registry Services.
- (b) The Landowner and the City must act promptly in complying with and assisting to respond to any requisitions raised by the NSW Land Registry Services that relate to registration of this document.
- (c) The City will notify the Landowner of any registration of this document by the City and provide the Landowner with a copy of all documents confirming any such registration.

9.2 **Release of this document**

- (a) If :
 - (i) the City is satisfied, acting reasonably, that the Landowner has provided the Public Benefit (unless waived by the City in accordance with this document or otherwise the subject of a notice issued under clause 6.3(a)) and otherwise complied with this document; or
 - (ii) this document is terminated in accordance with clause 14,

then the City must promptly do all things reasonably required to remove this document from all of the titles to the Land.
- (b) The Landowner must, within 10 Business Days of a written request from the City, do all things necessary to allow the City to comply with 9.2(a) including but not limited to:
 - (i) producing any documents or letters of consent required by the Registrar-General of the NSW Land Registry Services; and
 - (ii) providing the City with payment for registration, lodgement and requisition fees (where applicable) required for removal of this document from the titles to the Land by NSW Land Registry Services.

10. **ENFORCEMENT**

10.1 **Document to remain on the titles to the Land**

The Landowner acknowledges and agrees that this document will be registered on all of the titles of the Land in accordance with clause 9.1 and will remain on all of the titles to the Land until the Affordable Housing has been constructed and management has been handed to the Community Housing Provider, in accordance with this document.

10.2 **Issue of Subdivision Certificate**

The Landowner acknowledges that a subdivision certificate for the creation of the stratum lots for Buildings G and H will only be issued by the City following the Developer's Works achieving Completion in accordance with clause 6.3(a)(i).

11 DISPUTE RESOLUTION

11.1 Application

Any Dispute must be determined in accordance with the procedure in this clause 11.

11.2 Negotiation

(a) If any Dispute arises, a party to the Dispute (**Referring Party**) may by giving notice to the other party or parties to the Dispute (**Dispute Notice**) refer the Dispute to the City's Representative, the Landowner's Representative and the Community Housing Provider's Representative for resolution. The Dispute Notice must:

- (i) be in writing;
- (ii) state that it is given pursuant to this clause 11; and
- (iii) include or be accompanied by reasonable particulars of the Dispute including:
 - (A) a brief description of the circumstances in which the Dispute arose;
 - (B) references to any:
 - (aa) provisions of this document; and
 - (bb) acts or omissions of any person, relevant to the Dispute; and
 - (C) where applicable, the amount in dispute (whether monetary or any other commodity) and if not precisely known, the best estimate available.

(b) Within 10 Business Days of the Referring Party issuing the Dispute Notice (**Resolution Period**), the City's Representative, the Landowner's Representative and the Community Housing Provider's Representative must meet at least once to attempt to resolve the Dispute.

(c) The City's Representative, the Landowner's Representative and the Community Housing Provider's Representative may meet more than once to resolve a Dispute. The City's Representative, the Landowner's Representative and the Community Housing Provider's Representative may meet in person, via telephone, videoconference, internet-based instant messaging or any other agreed means of instantaneous communication to effect the meeting.

11.3 Not use information

The purpose of any exchange of information or documents or the making of any offer of settlement under this clause 11 is to attempt to settle the Dispute. Neither party may use any information or documents obtained through any dispute resolution process undertaken under this clause 11 for any purpose other than in an attempt to settle the Dispute.

11.4 Condition precedent to litigation

Subject to clause 11.5, a party must not commence legal proceedings in respect of a Dispute unless:

- (a) a Dispute Notice has been given; and
- (b) the Resolution Period has expired.

11.5 **Summary or urgent relief**

Nothing in this clause 11 will prevent a party from instituting proceedings to seek urgent injunctive, interlocutory or declaratory relief in respect of a Dispute.

12 **TAXES AND GST**

12.1 **Responsibility for Taxes**

- (a) The Landowner is responsible for any and all Taxes and other like liabilities which may arise under any Commonwealth, State or Territory legislation (as amended from time to time) as a result of or in connection with this document or the Public Benefit.
- (b) The Landowner must indemnify the City in relation to any claims, liabilities and costs (including penalties and interest) arising as a result of any Tax or other like liability for which the Landowner is responsible under clause 12.1(a).

12.2 **GST free supply**

To the extent that Divisions 81 and 82 of the GST Law apply to a supply made under this document:

- (a) no additional amount will be payable by a party on account of GST; and
- (b) no tax invoices will be exchanged between the parties.

12.3 **Supply subject to GST**

To the extent that clause 12.2 does not apply to a supply made under this document, this clause 12.3 will apply.

- (a) If one party (**Supplying Party**) makes a taxable supply and the consideration for that supply does not expressly include GST, the party that is liable to provide the consideration (**Receiving Party**) must also pay an amount (**GST Amount**) equal to the GST payable in respect of that supply.
- (b) Subject to first receiving a tax invoice or adjustment note as appropriate, the receiving party must pay the GST amount when it is liable to provide the consideration.
- (c) If one party must indemnify or reimburse another party (**Payee**) for any loss or expense incurred by the Payee, the required payment does not include any amount which the Payee (or an entity that is in the same GST group as the Payee) is entitled to claim as an input tax credit, but will be increased under clause 12.3(a) if the payment is consideration for a taxable supply.
- (d) If an adjustment event arises in respect of a taxable supply made by a Supplying Party, the GST Amount payable by the Receiving Party under clause 12.3(a) will be recalculated to reflect the adjustment event and a payment will be made by the Receiving Party to the Supplying Party, or by the Supplying Party to the Receiving Party, as the case requires.
- (e) The Landowner will assume the City is not entitled to any input tax credit when calculating any amounts payable under this clause 12.3.
- (f) In this document:
 - (i) consideration includes non-monetary consideration, in respect of which the parties must agree on a market value, acting reasonably; and
 - (ii) in addition to the meaning given in the GST Act, the term "GST" includes a notional liability for GST.

13 DEALINGS

13.1 Dealing by the City

- (a) The City may Deal with its interest in this document without the consent of the Landowner if the Dealing is with a Government Agency. The City must give the Landowner notice of the Dealing within 5 Business Days of the date of the Dealing.
- (b) The City may not otherwise Deal with its interest in this document without the consent of the Landowner, such consent not to be unreasonably withheld or delayed.

13.2 Dealing by the Landowner

- (a) Prior to registration of this document in accordance with clause 9;
 - (i) the Landowner must not Deal with this document or the Land without:
 - (A) the prior written consent of the City (such consent not to be unreasonably withheld); and
 - (B) the City, the Landowner and the third party the subject of the Dealing entering into a deed of consent to the Dealing on terms acceptable to the City.
- (b) Other than as permitted under clause 13.2(a), on and from registration of this document in accordance with clause 9:
 - (i) the Landowner may Deal with this document without the consent of the City only as a result of the sale of the whole of the Land (without subdivision) to a purchaser of the Land;
 - (ii) the Landowner may register a plan of strata subdivision, and the City consents to this document remaining registered only on the certificate of title to the common property of the strata plan upon registration of the strata plan; and
 - (iii) the Landowner must not otherwise Deal with this document to a third party that is not a purchaser of the whole or any part of the Land without:
 - (A) the prior written consent of the City (such consent not to be unreasonably withheld); and
 - (B) the City, the Landowner and the third party the subject of the Dealing entering into a deed of consent to the Dealing on terms acceptable to the City.
- (c) The Landowner must pay the City's costs and expenses relating to any consent or documentation required due to the operation of this clause 13.2.

14 TERMINATION

- (a) The City may terminate this document by notice in writing to the Landowner if the Development Consent lapses or is surrendered by the Landowner;
- (b) If the City terminates this document under clause 14(a), then:
 - (i) the rights of each party that arose before the termination or which may arise at any future time for any breach or non-observance of obligations occurring prior to the termination are not affected;
 - (ii) the Landowner must take all steps reasonably necessary to minimise any loss the City may suffer as a result of the termination of this document; and

- (iii) the City will, at the Landowner's cost, do all things reasonably required to remove this document from the title to the Land in accordance with clause 9.

15 CONFIDENTIALITY, DISCLOSURES AND PRIVACY

15.1 Use and disclosure of Confidential Information

A party (**receiving party**) which acquires Confidential Information of another party (**disclosing party**) must not:

- (a) use any of the Confidential Information except to the extent necessary to exercise its rights and perform its obligations under this document; or
- (b) disclose any of the Confidential Information except in accordance with clauses 15.2 or 15.3.

15.2 Disclosures to personnel and advisers

- (a) The receiving party may disclose Confidential Information to an officer, employee, agent, contractor, or legal, financial or other professional adviser if:
 - (i) the disclosure is necessary to enable the receiving party to perform its obligations or to exercise its rights under this document; and
 - (ii) prior to disclosure, the receiving party informs the person of the receiving party's obligations in relation to the Confidential Information under this document and obtains an undertaking from the person to comply with those obligations.
- (b) The receiving party:
 - (i) must ensure that any person to whom Confidential Information is disclosed under clause 15.2(a) keeps the Confidential Information confidential and does not use it for any purpose other than as permitted under clause 15.2(a); and
 - (ii) is liable for the actions of any officer, employee, agent, contractor or legal, financial or other professional adviser that causes a breach of the obligations set out in clause 15.2(b)(i).

15.3 Disclosures required by law

- (a) Subject to clause 15.3(b), the receiving party may disclose Confidential Information that the receiving party is required to disclose:
 - (i) by law or by order of any court or tribunal of competent jurisdiction; or
 - (ii) by any Government Agency, stock exchange or other regulatory body.
- (b) If the receiving party is required to make a disclosure under clause 15.3(a), the receiving party must:
 - (i) to the extent possible, notify the disclosing party immediately it anticipates that it may be required to disclose any of the Confidential Information;
 - (ii) consult with and follow any reasonable directions from the disclosing party to minimise disclosure; and
 - (iii) if disclosure cannot be avoided:
 - (A) only disclose Confidential Information to the extent necessary to comply; and

- (B) use reasonable efforts to ensure that any Confidential Information disclosed is kept confidential.

15.4 **Receiving party's return or destruction of documents**

On termination of this document the receiving party must immediately:

- (a) deliver to the disclosing party all documents and other materials containing, recording or referring to Confidential Information; and
- (b) erase or destroy in another way all electronic and other intangible records containing, recording or referring to Confidential Information,

which are in the possession, power or control of the receiving party or of any person to whom the receiving party has given access.

15.5 **Security and control**

The receiving party must:

- (a) keep effective control of the Confidential Information; and
- (b) ensure that the Confidential Information is kept secure from theft, loss, damage or unauthorised access or alteration.

15.6 **Media releases**

The Landowner must not issue any information, publication, document or article for publication in any media concerning this document or the Public Benefit without the City's prior written consent.

15.7 **Privacy**

- (a) Without limiting its obligations at law with respect to privacy and the protection of Personal Information, the Landowner:
 - (i) must not, directly or indirectly collect, use or disclose any Personal Information under or in connection with this document except to the extent necessary to perform its obligations under this document; and
 - (ii) must in the delivery of the Public Benefit and the performance of all its other obligations under this document comply with the Privacy Laws and must not do any act or engage in any practice that would breach the Privacy Laws or which if done or engaged in by the City would be a breach of any Privacy Laws.

16 **NOTICES**

- (a) A notice, consent or other communication under this document is only effective if it is in writing, signed and either left at the addressee's address or sent to the addressee by mail or email. If it is sent by mail, it is taken to have been received 5 Business Days after it is posted. If it is sent by email, it is taken to have been received the same day the email was sent, provided that the sender has not received a delivery failure notice (or similar), unless the time of receipt is after 5:00pm in which case it is taken to be received on the next Business Day.
- (b) A person's address and email address are those set out in Schedule 1 for the City's Representative, the Landowner's Representative or as the person notifies the sender in writing from time to time.

17 MODERN SLAVERY

(a) In this clause:

- (i) **Engaged Entities** means any first tier (direct) suppliers, subcontractors, consultants and contractors engaged by the Landowner in connection with this document;
- (ii) **Grievance Mechanism** means a process for handling a complaint or grievance about Modern Slavery that is consistent with the criteria set out in Principle 31 of the 2011 United Nations Guiding Principles on Business and Human Rights;
- (iii) **Modern Slavery** has the meaning given to it in section 4 of the *Modern Slavery Act*;
- (iv) **Modern Slavery Act** means the *Modern Slavery Act 2018* (Cth);
- (v) **Modern Slavery Laws** means all applicable modern slavery laws, statutes, regulations and codes from time to time in force which prohibit the exploitation of workers, human trafficking, slavery, servitude, forced labour, debt bondage or deceptive recruiting for labour or services or similar, including but not limited to the Modern Slavery Act and the *Modern Slavery Act 2018* (NSW);
- (vi) **Reasonable Steps** includes:
 - (A) obtaining awareness of what constitutes and the Modern Slavery and the Modern Slavery Laws in Australia;
 - (B) undertaking activities to identify and address Modern Slavery risks in the Landowner's operations and supply chain (including adherence to Australian labour laws, conducting a Modern Slavery risk assessment and implementing a Modern Slavery policy);
 - (C) consulting with the Landowner's Engaged Entities to identify and mitigate Modern Slavery risks in their supply chain and labour force, including by implementing policies and procedures that reject the exploitation of migrant workers;
 - (D) providing training necessary to identify Modern Slavery risks, risk management and remediation procedures to Personnel;
 - (E) having regard to any policy, direction or document released by the New South Wales Office of the Anti-Slavery Commissioner from time to time.

(b) The Landowner must:

- (i) not cause or contribute to Modern Slavery or engage in any activity, practice or conduct that constitutes an offence under Modern Slavery Laws or that would constitute an offence if such activity, practice or conduct were carried out in Australia;
- (ii) take Reasonable Steps (having regard to the size, nature and industry of the Landowner's business) to identify, assess and address Modern Slavery risks within their operations and supply chains;
- (iii) comply with any request from the City to provide any information necessary to enable the City to comply with its obligations under the Modern Slavery Laws and undertake any due diligence on the Landowner's supply chains as required;
- (iv) ensure that they and their Engaged Entities pay its Personnel at least the minimum wage and other entitlements as required by Law;
- (v) cooperate in good faith with the City in investigating the circumstances relevant to any potential, suspected or actual breach of any Modern Slavery Laws;

- (vi) ensure access to an effective Grievance Mechanism for any Personnel within their operations (including Personnel of its Engaged Entities);
 - (vii) provide access to documentation and information as reasonably required by the City to verify the Landowner's compliance with clause 17(b); and
 - (viii) include in their contracts with any subcontractors or suppliers, Modern Slavery provisions that are at least as onerous as those set out in this clause 17.
- (c) All parties agree:
- (A) to provide reasonable assistance to the other parties to comply with this clause 17; and
 - (B) to implement systems, procedures and policies as required to meet their obligations under this clause 17.
- (d) In the event of any potential, suspected or actual instances of Modern Slavery within their operations or supply chain, the Landowner must:
- (i) notify the City in writing as soon as practicable with adequate particulars to enable the City to understand the potential, suspected or actual instances of Modern Slavery;
 - (ii) within 10 Business Days (or such other timeframe as agreed by the parties), prepare a suitable remediation plan that:
 - (A) outlines the steps that the Landowner intends to take to remedy the issue along with an explanation as to how the proposed steps will resolve the issue;
 - (B) provides a timeframe for implementation and completion of these steps; and
 - (C) explains the quantitative/qualitative indicators that will determine when the issue has been resolved
- (Remediation Plan)** for the City to review;
- (iii) amend the Remediation Plan to reflect reasonable additional direction provided by the City in relation to any feedback it gives on the Remediation Plan following its review;
 - (iv) take all reasonable steps to ensure that the Remediation Plan is completed within the period determined by clause 17(d)(ii).
- (e) The City may give reasonable assistance to the Landowner to prepare and/or implement a Remediation Plan where deemed appropriate.
- (f) The Landowner must provide the City with evidence of the ongoing implementation of the Remediation Plan promptly upon request.
- (g) The parties agree that a breach of clause 17(b) or clause 17(c) or failing to use best endeavours to implement a Remediation Plan will be a material breach of this document **(Modern Slavery Material Breach)**.
- (h) Where a Modern Slavery Material Breach is not capable of being remedied, or is otherwise not remedied within a reasonable timeframe as agreed by the parties, the Landowner indemnifies the City against all damage, expense, loss or liability of any nature suffered or incurred by the City arising from any act or omission by the Landowner (or any of their Personnel) in connection with the performance of the Landowner's obligations under this clause 17.

- (i) The Landowner represents and warrants that:
 - (i) they have not, as of the date of this document, engaged in Modern Slavery or breached any Modern Slavery Laws;
 - (ii) it has disclosed to the extent that it is aware, any actual or reasonably suspected Modern Slavery within its own operations or the supply chain of any of their Engaged Entities and any actions taken to remedy the disclosed event;
 - (iii) any information provided to the City with respect to Modern Slavery is accurate, complete and not misleading and/or deceptive in any way; and
 - (iv) it has taken reasonable steps to ensure that any Engaged Entities engaged in connection with this document have complied and continue to comply with the obligations contained in this clause 17.

18 GENERAL

18.1 Governing law

- (a) This document is governed by the laws of New South Wales.
- (b) Each party submits to the exclusive jurisdiction of the courts exercising jurisdiction in New South Wales, and any court that may hear appeals from any of those courts, for any proceedings in connection with this document, and waives any right it might have to claim that those courts are an inconvenient forum.

18.2 Access to information

In accordance with section 121 of the *Government Information (Public Access) Act 2009 (NSW)*, the Landowner agrees to allow the City immediate access to the following information contained in records held by the Landowner:

- (a) information that relates directly to the delivery of the Public Benefit by the Landowner;
- (b) information collected by the Landowner from members of the public to whom the Landowner provides, or offers to provide, services on behalf of the City; and
- (c) information received by the Landowner from the City to enable the Landowner to deliver the Public Benefit.

18.3 Liability for expenses

- (a) The Landowner must pay its own and the City's expenses incurred in negotiating, executing, registering, releasing, administering and enforcing this document.
- (b) The Landowner must pay for all reasonable costs and expenses associated with the preparation and giving of public notice of this document and the explanatory note prepared in accordance with the Regulations and for any consent the City is required to provide under this document, in accordance with the City's Revenue Policy: Fees and Charges.

18.4 Relationship of parties

- (a) Nothing in this document creates a joint venture, partnership, or the relationship of principal and agent, or employee and employer between the parties; and
- (b) No party has the authority to bind any other party by any representation, declaration or admission, or to make any contract or commitment on behalf of any other party or to pledge any other party's credit.

18.5 **Giving effect to this document**

Each party must do anything (including execute any document) and must ensure that its employees and agents do anything (including execute any document), that the other party may reasonably require to give full effect to this document.

18.6 **Time for doing acts**

(a) If:

- (i) the time for doing any act or thing required to be done; or
- (ii) a notice period specified in this document,

expires on a day other than a Business Day, the time for doing that act or thing or the expiration of that notice period is extended until the following Business Day.

(b) If any act or thing required to be done is done after 5pm on the specified day, it is taken to have been done on the following Business Day.

18.7 **Severance**

If any clause or part of any clause is in any way unenforceable, invalid or illegal, it is to be read down so as to be enforceable, valid and legal. If this is not possible, the clause (or where possible, the offending part) is to be severed from this document without affecting the enforceability, validity or legality of the remaining clauses (or parts of those clauses) which will continue in full force and effect.

18.8 **Preservation of existing rights**

The expiration or termination of this document does not affect any right that has accrued to a party before the expiration or termination date.

18.9 **No merger**

Any right or obligation of any party that is expressed to operate or have effect on or after the completion, expiration or termination of this document for any reason, will not merge on the occurrence of that event but will remain in full force and effect.

18.10 **Waiver of rights**

A right may only be waived in writing, signed by the party giving the waiver, and:

- (a) no other conduct of a party (including a failure to exercise, or delay in exercising, the right) operates as a waiver of the right or otherwise prevents the exercise of the right;
- (b) a waiver of a right on one or more occasions does not operate as a waiver of that right if it arises again; and
- (c) the exercise of a right does not prevent any further exercise of that right or of any other right.

18.11 **Operation of this document**

- (a) This document contains the entire agreement between the parties about its subject matter. Any previous understanding, agreement, representation or warranty relating to that subject matter is replaced by this document and has no further effect.

- (b) Any right that a person may have under this document is in addition to, and does not replace or limit, any other right that the person may have.
- (c) Any provision of this document which is unenforceable or partly unenforceable is, where possible, to be severed to the extent necessary to make this document enforceable, unless this would materially change the intended effect of this document.

18.12 Operation of indemnities

- (a) Each indemnity in this document survives the expiry or termination of this document.
- (b) A party may recover a payment under an indemnity in this document before it makes the payment in respect of which the indemnity is given.

18.13 Inconsistency with other documents

Unless the contrary intention is expressed, if there is an inconsistency between any of one or more of:

- (a) this document;
- (b) any Schedule to this document; and
- (c) the provisions of any other document of the Landowner,

the order of precedence between them will be the order listed above, this document having the highest level of precedence.

18.14 No fetter

Nothing in this document in any way restricts or otherwise affects the City's unfettered discretion to exercise its statutory powers as a public authority.

18.15 Counterparts

This document may be executed in counterparts.

SCHEDULE 1

Agreement Details

ITEM	TERM	DESCRIPTION
1.	Land	Lot 20 in DP1290687 known as 155 Mitchell Road Erskineville NSW 2043.
2.	Development	Amended Concept Approval for mixed use development and Detailed Development Approval for Buildings F & I, comprising a 7-11 storey mixed use development including Build-to-Rent (BTR) apartments with ground floor supermarket and retail (Building F), over two levels of shared basement, and for buildings G & H, comprising a 6-11 storey residential development including BTR apartments (Building G) and affordable housing (building H), over one level of shared basement, and landscaping. The total Gross Floor Area of the Development on the Land is 90,618m², square metres.
3.	City's Representative	Name: Executive Director, Planning, Development and Transport Address: Level 1, 456 Kent Street, Sydney NSW 2000 Email: planningsystemsadmin@cityofsydney.nsw.gov.au
4.	Landowner's Representative	Name: Aras Labutis Address: Level 2, 66 Wentworth Ave Surry Hills NSW 2010 Email: al@coronation.com.au
5.	Development Application	D/2025/448 (the Amended Concept DA) and D/2025/405 (the detailed DA for Buildings F, G H & I)

SCHEDULE 2

Requirements under the Act and Regulation (clause 2)

The below table summarises how this document complies with the Act and Regulation.

ITEM	SECTION OF ACT OR REGULATION	PROVISION/CLAUSE OF THIS DOCUMENT
1.	Planning instrument and/or development application (section 7.4(1) of the Act) The Landowner has: (a) sought a change to an environmental planning instrument; (b) made, or proposes to make, a Development Application; or (c) entered into an agreement with, or is otherwise associated with, a person, to whom paragraph (a) or (b) applies.	(a) No (b) Yes (c) No
2.	Description of land to which this document applies (section 7.4(3)(a) of the Act)	Item 1 of Schedule 1
3.	Description of change to the environmental planning instrument to which this document applies and/or the development to which this document applies (section 7.4(3)(b) of the Act)	The Development as described in Item 2 of Schedule 1
4.	The nature and extent of the provision to be made by the Landowner under this document, the time or times by which the provision is to be made and the manner in which the provision is to be made (section 7.4(3)(c) of the Act)	Schedule 3
5.	Whether this document excludes (wholly or in part) of does not exclude the application of section 7.11 or 7.12 to the development (section 7.4(3)(d) of the Act)	Section 7.11 not excluded (if applicable) Section 7.12 not excluded (if applicable)
6.	Applicability of section 7.11 of the Act (section 7.4(3)(e) of the Act)	The application of section 7.11 of the Act is not excluded in respect of the Development and contributions (if any) under section 7.11 will be required to be paid
7.	Consideration of benefit under this document if section 7.11 applies (section 7.4(3)(e) of the Act)	The Benefit is not to be taken into consideration in determining a development contribution under section 7.11 of the Act

ITEM	SECTION OF ACT OR REGULATION	PROVISION/CLAUSE OF THIS DOCUMENT
8.	Mechanism for Dispute Resolution (section 7.4(3)(f) of the Act)	Clause 11
9.	Enforcement of this document (section 7.4(3)(g) of the Act)	Clause 10
10.	No obligation to grant consent or exercise functions (section 7.4(9) of the Act)	Clause 2.5
11.	Registration of this document (section 7.6 of the Act)	Clause 9
12.	Whether certain requirements of this document must be complied with before a construction certificate is issued (clause 25E(2)(g) of the Regulation)	Execution of the Stage 2 Community Housing Provider Agreement prior to the first Construction Certificate for fit out and façade works for Building G and H (excluding any Construction Certificate issued for the Early works DA)
13.	Whether certain requirements of this document must be complied with before a subdivision certificate is issued (clause 25E(2)(g) of the Regulation)	Completion of the Developer's Works must be achieved before a subdivision certificate is issued for Buildings G and H
14.	Whether certain requirements of this document must be complied with before an occupation certificate is issued (clause 25E(2)(g) of the Regulation)	Completion of the construction of the Affordable Housing Building, subdivision and creation of the stratum lot for the Affordable Housing Building, and Registration of the Affordable Housing Restriction prior to the issue of an Occupation Certificate for Buildings G and H
15.	Whether the explanatory note that accompanied exhibition of this document may be used to assist in construing this document (clause 25E(7) of the Regulation)	Clause 2.6

SCHEDULE 3

Public Benefit (clause 5)

1. PUBLIC BENEFIT - OVERVIEW

The Landowner must provide the Public Benefit in accordance with Schedule 3 and this document. The Attributed Value, timing of delivery and additional specifications relating to the Public Benefit is set out in the table below

Item	Public Benefit	Attributed Value	Due date	Additional specifications
1.	Onsite Affordable Housing	Nil	(a) Prior to execution of this document. (b) Prior to any Construction Certificate for fit out and façade works for Building G and H (excluding any Construction Certificate issued for the Early works DA). (c) Prior to the issue of any Occupation Certificate for Building G and H Completion of the construction of the Affordable Housing Building. (d) After Completion but prior to the issue of any Occupation Certificate for Building G and H. (e) Prior to the issue of an Occupation Certificate for Building G and H.	(a) Execution of the Stage 1 Community Housing Provider Agreement in accordance with clause 3.2 of Schedule 3 and Annexure C of this document. (b) Execution of the Stage 2 Community Housing Provider Agreement that meets the requirements set out in clause 3.3 of Schedule 3. (c) Design, construction and fit-out of the Affordable Housing Building as part of the Development, being a minimum of 15% of total Gross Floor Area of the Detailed Development Consent, being no less than, 13,592.7 square metres (Gross Floor Area), and that meets the requirements set out in clause 2.2 of Schedule 3 and the guidelines set out in Annexure B of this document. (d) Subdivisions and creation of Stratum Lot defining the extent of the Affordable Housing Building (Building H). (e) Registration of the Affordable Housing Restriction and the Affordable Housing

			(f) Within 30 days of issue of the Occupation Certificate for Building G and H,. (g) Within 3 weeks of the end of each financial year, in perpetuity.	Covenant on the Stratum Lot of the Affordable Housing. (f) The Community Housing Provider must commence management of the Affordable Housing Building in accordance with the Stage 2 Community Housing Provider Agreement, and clauses 2.3 and 3 of Schedule 3. (g) Landowner to provide the annual report to the City, verified or co-signed by the Community Housing Provider, in accordance with clause 2.3 of Schedule 3 and the Affordable Housing Covenant.
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2. ONSITE AFFORDABLE HOUSING

2.1 Amount of Affordable Housing

- (a) The minimum total square meterage (Gross Floor Area) of Affordable Housing required by clause 1 of Schedule 3 will be no less than the quantum as specified in clause 1 in the table above.
- (b) Where the quantum results in a fractional dwelling, the requirement will be rounded up to the nearest whole dwelling. In such cases, the shortfall will not be offset by a monetary contribution, but instead a full additional Affordable Dwelling will be provided.

2.2 Affordable Housing requirements

- (a) The Landowner is to deliver the Affordable Housing in the form of the Affordable Housing Dwellings contained in the Affordable Housing Building.
- (b) The Landowner is to deliver the Affordable Housing in accordance with the plans approved by the Development Consent (or any subsequent modification to the same).
- (c) The Affordable Housing Building must consist entirely of Affordable Housing Dwellings and associated common circulation areas.
- (d) The Affordable Housing will be in perpetuity as opposed to the 15 years mandated by the Housing SEPP.
- (e) The Landowner must design, construct and fit-out the Affordable Housing Dwellings contained in the Affordable Housing Building at their cost.
- (f) The Affordable Housing Dwellings and the Affordable Housing Building must be:

- (i) designed and constructed to the same standard as the other residential dwellings in the Development and is not differentiated as affordable housing compared with the design and construction of other housing in the Development (or as otherwise agreed to by the Community Housing Provider);
- (ii) fitted out in accordance with, or to a standard equivalent to, the specifications in this clause 2 and the guidelines included in Annexure B.

2.3 Affordable Housing Reporting

- (a) Within 3 weeks of the end of each financial year, the Landowner must provide to the City an annual report on the utilisation of the Affordable Housing Dwellings and the Affordable Housing Building for that financial year that includes the following:
 - (i) confirmation of the ownership of the stratum for the Affordable Housing Building;
 - (ii) confirmation the Stage 2 Community Housing Provider Agreement remains in place;
 - (iii) in relation to each Affordable Housing Dwelling:
 - (A) confirmation that a residential tenancy agreement is in place;
 - (B) the market rent, as determined by the methodology set out in the NSW Affordable Housing Ministerial Guidelines;
 - (C) the discounted market rent;
 - (D) the income band of the household as per the NSW Affordable Housing Ministerial Guidelines; and
 - (E) the applicable rent charge inclusive of Commonwealth Rent Assistance.
- (b) The annual report to be provided in accordance with clause 2.3(a) of Schedule 3 must:
 - (i) be verified or co-signed by the Community Housing Provider that is a party to the Stage 2 Community Housing Provider Agreement; and
 - (ii) be submitted to the City via email to ahreporting@cityofsydney.nsw.gov.au, or such other email address nominated by the City from time to time.

3. COMMUNITY HOUSING PROVIDER AGREEMENTS

3.1 Community Housing Provider

The City does not assume or owe any duty of care to the Landowner in relation to the Landowner's selection of the Community Housing Provider.

3.2 Stage 1 Community Housing Provider Agreement requirements

- (a) The Landowner acknowledges and agrees that, as a condition of this Planning Agreement, it must enter into a legally enforceable deed of agreement with the Community Housing Provider (the Stage 1 Community Housing Provider Agreement) which:
 - (i) acknowledges the Landowner's and the Community Housing Provider's agreement to the Development Consent, subject to any changes required in accordance with clauses 2.2 and 2.3 of Schedule 3; and
 - (ii) outlines the key terms and conditions agreed upon by the Landowner and the Community Housing Provider before entering into the Stage 2 Community

Housing Provider Agreement, and on the terms substantially consistent with those set out in Annexure C to this document.

- (b) The parties must execute the Stage 1 Community Housing Provider Agreement at the time of the execution of this Planning Agreement and thereafter must use all reasonable endeavours to negotiate in good faith and execute the Stage 2 Community Housing Provider Agreement in accordance with the terms of the Stage 1 Community Housing Provider Agreement.

3.3 Stage 2 Community Housing Provider Agreement requirements

The Landowner must at its cost prepare and, subject to clause 3.4 of Schedule 3, enter into the Stage 2 Community Housing Provider Agreement by the due date specified in clause 1 of Schedule 3 that:

- (a) provides details as to how commencement of management of the Affordable Housing Dwellings and the Affordable Housing Building by the Community Housing Provider will be undertaken, at no cost to the Community Housing Provider.
- (b) for the avoidance of doubt, provides that the responsibility for ongoing costs to advertise and manage the Affordable Housing Dwellings and the Affordable Housing Building are to be agreed between the Community Housing Provider and the Landowner;
- (c) provides details of those costs detailed in clause 3.3(b) of Schedule 3 above;
- (d) requires the Affordable Housing Building to have the Affordable Housing Restriction and Affordable Housing Covenant registered on title, prior to the commencement of management of the Affordable Housing Building by the Community Housing Provider;
- (e) requires all parties comply with the Housing SEPP (as applicable and as updated or amended from time to time), in respect of the Affordable Housing Dwellings contained in the Affordable Housing Building;
- (f) specifies the size and layout of each Affordable Housing Dwelling included in the Affordable Housing Building and the design, construction fit-out specifications, as agreed between the Landowner and the Community Housing Provider;
- (g) requires that the Landowner not amend, change or otherwise alter the size or layout of the Affordable Housing Dwellings, or the design, construction and fit-out specifications agreed between the Landowner and the Community Housing Provider except with the written support of the Community Housing Provider;
- (h) specifies the process and timings for the Landowner to provide regular updates to the Community Housing Provider on the Development Consent and any modifications to the Development Consent and the design, construction, fit-out of the Affordable Housing Dwellings and the commencement of management of the Affordable Housing Building;
- (i) sets out the processes for:
 - (i) ensuring the Community Housing Provider is reasonably satisfied with the design, construction and fit-out of the Affordable Housing Dwellings and Affordable Housing Building; and
 - (ii) acceptance of the Affordable Housing Dwellings by the Community Housing Provider following construction and fit-out, and issue of the Occupation Certificate, and prior to commencement of the management of the Affordable Housing Dwellings and Affordable Housing Building by the Community Housing Provider;

- (j) sets out a fair and reasonable process for dispute resolution, including for disputes relating to the size, layout, design, construction, fit-out of the Affordable Housing Dwellings and commencement of management of the Affordable Housing Building;
- (k) provides the Community Housing Provider with a right to terminate the Stage 2 Community Housing Provider Agreement, without penalty, where the Community Housing Provider reasonably believes the Landowner have breached any provision of the Stage 2 Community Housing Provider Agreement and that breach is incapable of remedy or has continued for 10 Business Days after the date the Community Housing Provider gives notice requiring the breach be remedied;
- (l) a right for the Landowner to terminate the Stage 2 Community Housing Provider Agreement, without penalty, where the Landowner reasonably believes the Community Housing Provider has breached any provision of the Stage 2 Community Housing Provider Agreement and that breach is incapable of remedy or has continued for 10 Business Days after the date the Landowner gives notice requiring the breach be remedied;
- (m) requires that the Landowner promptly rectify, at its cost, any Defects in the Affordable Housing Building identified by the Community Housing Provider and notified to the Landowner during the Defects Liability Period;
- (n) requires that the Landowner provides to the Community Housing Provider copies of any warranties, guarantees, maintenance information or other material reasonably required by the Community Housing Provider prior to the commencement of the management of the Affordable Housing Building;
- (o) requires the Community Housing Provider to provide the information required by the Landowner to provide an annual report to the City, and to verify or co-sign that report, in accordance with clause 2.3 of Schedule 3 of this document;
- (p) requires the Landowner and Community Housing Provider to notify the City 30 Business Days prior to a change of ownership or change of Community Housing Provider of the Affordable Housing Building and/or Affordable Housing Dwellings once management has commenced; and
- (q) where a change of Landowner or Community Housing Provider has occurred, requires any incoming party to enter into a new Community Housing Provider Agreement for the management of the Affordable Housing Building and/or Affordable Housing Dwellings in accordance with the Community Housing Providers Act.

3.4 Provision of Agreement to City

The Landowner must provide a copy of the proposed Stage 2 Community Housing Provider Agreement to the City. The City may provide amendments to the Stage 2 Community Housing Provider Agreement to the Landowner, limited only to information required as part of this document that must be addressed in the Stage 2 Community Housing Provider Agreement. The Landowner must ensure any such amendments are addressed in the Stage 2 Community Housing Provider Agreement prior to its execution.

3.5 Variation of the Agreement

The Landowner must seek the City's prior written approval of any variations to the Stage 2 Community Housing Provider Agreement where any such variation will affect the information required as part of this document that must be addressed in the Stage 2 Community Housing Provider Agreement.

3.6 Termination of the Stage 1 or Stage 2 Agreement

- (a) If the Stage 1 Community Housing Provider Agreement is terminated for any reasons prior to the execution of the Stage 2 Community Housing Provider Agreement, or the

commencement of management of the Affordable Housing Building by Community Housing Provider, the Landowner must notify the City within 10 Business Days of the date of termination, and the Landowner must enter into a new agreement with another Community Housing Provider within a further 2 months, or such other period as agreed in writing by the City, on substantially the same terms.

- (b) If the Stage 2 Community Housing Provider Agreement is terminated for any reason prior to the commencement of management of the Affordable Housing Building by the Community Housing Provider, the Landowner must notify the City within 10 Business Days of the date of termination, and the Landowner must enter into a new agreement with another Community Housing Provider within a further 2 months, or such other period as agreed in writing by the City, on substantially the same terms.

4. DEVELOPER'S WORKS

4.1 Scope of Developer's Works

As at the date of this document, the nature and extent of the required Developer's Works is set out in the Public Benefit described as "Onsite Affordable Housing" in clause 1 of Schedule 3. The parties agree that further design refinement of the Developer's Works may be necessary, having regard to:

- (a) the extent to which the design of the Developer's Works has been approved by the City;
- (b) conditions affecting the Developer's Works that were not reasonably capable of identification prior to the date of this document;
- (c) the extent of any refinement of the design of the Developer's Works permitted by this clause 4.1 of Schedule 3.
- (d) any modification to the Development Consent made and approved under section 4.55 of the Act or any other development consent granted that relates to the Developer's Works.

4.2 Final design

- (a) The parties acknowledge and agree that the Development Application for the Developer's Works has been lodged and Development Consent granted.
- (b) Notwithstanding clause 4.2(a), where amendments to the approved design are proposed under clause 4.1 of Schedule 3, the Landowner may be required to lodge a modification application under section 4.55 of the Act to vary the Development Consent accordingly, at the Landowner's cost.
- (c) The parties agree that the review and approval of the final design of the Developer's Works, including ensuring its compliance with this document, will occur as part of the Development Application and Development Consent process under the Act. The final design will therefore be a design which is reflected in the applicable Development Consent, the approved plans and Construction Certificates issued pursuant to the applicable Development Consent.
- (d) The City does not assume or owe any duty of care to the Landowner in reviewing any design drawings submitted to it under clause 4.1 of Schedule 3 or for any errors, omissions or non-compliance with this document.
- (e) No participation by the City in the development of, the review of, or comments on any design drawings submitted by the Landowner will lessen or otherwise affect the Landowner's obligations under this document or constitute an acknowledgement by the City that the Landowner has complied with its obligations under this document.

4.3 Insurance

- (a) From commencement of the Developer's Works until the end of the 12-month period commencing on the date the Community Housing Provider commences management of the Affordable Housing Building, the Landowner must effect and maintain (or cause to be effected and maintained under one or more policies of insurance and without requiring any risk to be double insured) the following insurances held with an insurer licensed by the Australian Prudential Regulation Authority or holding an investment grade rating from Standard & Poors, Moody's or Fitch:
 - (i) worker's compensation insurance or registrations as required by Laws; and
 - (ii) public liability insurance written on an occurrence basis with a limit of indemnity of not less than \$20,000,000 covering all aspects of the Developer's Works.
- (b) The Landowner must submit a copy of all certificates of insurance to the City:
 - (i) prior to commencing construction of the Developer's Works; and
 - (ii) promptly following a written request by the City, provided that such a request is not made more than twice in any 12 month period.

4.4 Approvals and consents

The Landowner must, at its cost, obtain all relevant approvals and consents for the Developer's Works, whether from the City or from any other relevant Government Agency, including any necessary road opening permits. Before commencing the Developer's Works, the Landowner must give to the City copies of all approvals and consents for the Developer's Works, other than the Development Consent.

4.5 Construction work

The Landowner must, at its cost:

- (a) carry out and complete the Developer's Works in accordance with all Laws, and all approvals and consents relating to the Developer's Works, including any approval given by the City under this document;
- (b) ensure that all Developer's Works are constructed in a good and workmanlike manner, in accordance with the plans approved under this document so that the Developer's Works are structurally sound, fit for purpose and suitable for their intended use;
- (c) ensure that the Developer's Works are complete by the due date specified in clause 1 of Schedule 3 and promptly after becoming aware advise the City's Representative of any significant delays in completing the Developer's Works or delays that may impact the delivery of the Public Benefit by the due date specified in clause 1 of Schedule 3; and
- (d) comply with all reasonable directions of the City in respect to construction of the Developer's Works.

4.6 Inspections by the City

The City, as a party to this document and not in its role as a Government Agency, may:

- (a) inspect the Developer's Works during the course of construction at reasonable times and on reasonable notice; and
- (b) notify the Developer's Representative of any material or significant Defect, relating to the construction or installation of the Developer's Works identified during or as the result of an inspection;

- (c) the parties note that any requirement to remedy a material or significant Defect that may be identified by the City is a matter for the private certifier appointed by the Landowner, subject to the proviso that the private certifier must provide written notice to the parties specifying the reasons why any such Defect has not been rectified.

Any failure by the City to identify a Defect, error or omission will not be construed as amounting to an acceptance by the City of the Defect, error or omission.

4.7 RAB (CEP) Act

The Landowner acknowledges that, to the extent that they are applicable, that the RAB (CEP) Act and the RAB (CEP) Regulation applies to the Developer's Works.

4.8 DBP Act and DBP Regulation

The Landowner acknowledges that, to the extent that they are applicable, that the DBP Act and the DBP Regulation applies to the Developer's Works.

EXECUTED as a deed.

Signed, sealed and delivered for
**THE COUNCIL OF THE CITY OF
SYDNEY** (ABN 22 636 550 790) by
its duly authorised officer, in the
presence of:

Signature of officer

Signature of witness

Name of officer
Authorised delegate pursuant to
section 377 of the Local Government
Act 1993

Name

Position of officer

456 Kent Street, Sydney NSW 2000
Address of witness

**EXECUTED by ERSKINEVILLE
INVESTMENTS PTY LTD** (ACN 659
572 255) in accordance with s127(1)
of the Corporations Act 2001 (Cth):

Signature of director

Signature of director

Name

Name

ANNEXURE A

Affordable Housing Restriction

1. DEFINITIONS

Act means the *Environmental Planning and Assessment Act 1979* (NSW) as amended or varied from time to time

Affordable Housing has the meaning given in the Act.

Affordable Housing Building means the independent building in stratum that contains the Affordable Housing Dwellings in stratum on that part of the Land that has been approved in the Consent as Affordable Housing.

Affordable Housing Dwellings means the affordable housing dwellings contained in the Affordable Housing Building.

Consent means the consent granted to Development Application [insert DA number] in accordance with the Act.

Conveyancing Act means the *Conveyancing Act 1919* (NSW) as amended or varied from time to time.

Council means the Council of the City of Sydney (ABN 22 636 550 790).

Eligible Community Housing Provider means an entity that provides community housing that is registered in NSW under the *Community Housing Providers (Adoption of National Law) Act 2012* (NSW), and that has a registration category of Tier 1, as that tier is defined in the Registrar of Community Housing NSW Local Scheme Tier Guidelines, as varied or replaced.

Eligible Households means households taken to be a very low income household, low income household, or moderate income household as such households are defined by reference to gross income in section 13(1)(a)(i) of the SEPP.

Land means the land contained within Folio Identifier [insert], also known as [insert address].

Owner means the registered proprietor of the Land and every person (including a corporation) who at any time is entitled to an estate or interest in the Land, including but not limited to any freehold or lease hold estate or interest in possession of any part of the Land.

SEPP means the *State Environmental Planning Policy (Housing) 2021* (NSW) as amended or varied from time to time.

Strata Act means the *Strata Schemes Development Act 2015* (NSW) as amended or varied from time to time.

2. TERMS

- (a) The Owner must not develop, use or occupy the Affordable Housing Dwellings and the Affordable Housing Building for any purpose other than for the purposes of Affordable Housing.
- (b) Any change of use of the Affordable Housing Dwellings and the Affordable Housing Building from Affordable Housing is prohibited.

- (c) Any part of the Land that is used for Affordable Housing must be:
 - a. managed by an Eligible Community Housing Provider;
 - b. provided to Eligible Households for a rent in accordance with the SEPP; and
 - c. managed in accordance with the SEPP except that the Affordable Housing is provided in perpetuity.
- (d) The Owner must obtain the consent of Council prior to the Land being subdivided, including but not limited to any subdivision under the Strata Act.
- (e) Any subdivision of the Land must include a restriction on the same terms as this document burdening all lots that comprise or contain Affordable Housing Dwellings.

3. GENERAL

- (a) This restriction on use is for the benefit of Council and only Council has the right to release, vary or modify this restriction in accordance with section 88E of the Conveyancing Act.
- (b) Any provision of this document which is unenforceable or partly unenforceable is, where possible, to be severed to the extent necessary to make this document enforceable, unless this would materially change the intended effect of this document.
- (c) In the event of any inconsistency between the terms and definitions of this restriction and the Act and/or the SEPP the terms of this restriction prevail to the extent permitted by law.

ANNEXURE B

Affordable Housing Building Guidelines

1. Strata requirements

Where possible, provide a separate entrance to a separate stratum of affordable housing dwellings.

2. Dwelling mix requirements

The mix of the proposed affordable housing dwellings (i.e. the number of bedrooms) is to be appropriate to the needs of the receiving Community Housing Provider.

3. Parking and servicing

Parking and general servicing requirements are to be provided in accordance with the Development Consent.

4. External design

The external design of the proposed affordable housing dwellings/building is to be equivalent in design quality to other dwellings in the development, and provided in accordance with the Development Consent

5. Design for reduced living costs

The proposed affordable housing dwellings must:

- (a) where possible, maximise passive ventilation and cooling methods to avoid air conditioning costs;
- (b) where possible, incorporate solar energy connections and rainwater tanks;
- (c) be excluded from embedded power networks, if the embedded network does not allow tenants to freely choose the service provider;
- (d) include ceiling fans and window blinds for thermal comfort; and
- (e) include appliances with high efficiency standards.

6. Design for reduced cyclical management costs

Construction design and material choices are to be agreed at the design stage to address the longer-term management and maintenance costs of the proposed affordable housing dwellings, including:

- (a) inclusion of robust, durable internal and external finishes; and
- (b) use of low maintenance and easily replaceable materials.

ANNEXURE C

Stage 1 Community Housing Provider Agreement

This Deed is made on 2026.

Parties

1. **Ersrineville Investments Pty Ltd** ACN 659 572 255 of Level 2, 66 Wentworth Avenue, Surry Hills NSW 2010 (**Landowner**)
2. **[Community Housing Provider Name]** ABN [insert ABN] of [insert address] (**CHP**)

Background

- A. The Landowner has entered, or intends to enter, into the Planning Agreement with the City in connection with the Development.
- B. Under the Planning Agreement, the Landowner is required to deliver the Affordable Housing, including entering into a Stage 1 Community Housing Provider Agreement with a registered community housing provider.
- C. This Deed is the Stage 1 Community Housing Provider Agreement and sets out the terms agreed between the Developer and the CHP at the time of execution of the Planning Agreement and the key terms to be included in the Stage 2 Community Housing Provider Agreement.
- D. The parties intend that this Deed is legally binding and enforceable.

1. Definitions and Interpretation

1.1 Definitions

Planning Agreement means the planning agreement entered into between the Landowner and the Council of the City of Sydney dated on or about the time of this Deed.

Stage 2 Agreement means the legally binding Stage 2 Community Housing Provider Agreement between the Landowner and Community Housing Provider that provides for the management of the Affordable Housing Building by the Community Housing Provider to operate as Affordable Housing and that meets the requirements set out in clause 3 of Schedule 3 of the Planning Agreement.

Capitalised terms in this Deed have the meaning given to them in the Planning Agreement.

1.2 Interpretation

Headings are for convenience only, and do not affect interpretation. The following rules also apply in interpreting this document, except where the context makes it clear that a rule is not intended to apply.

(a) A reference to:

- (i) a legislative provision or legislation (including subordinate legislation) is to that provision or legislation as amended, re-enacted or replaced, and includes any subordinate legislation issued under it;
- (ii) a document (including this document) or agreement, or a provision of a document (including this document) or agreement, is to that document, agreement or provision as amended, supplemented, replaced or novated;
- (iii) a party to this document or to any other document or agreement includes a permitted substitute or a permitted assign of that party;

- (iv) a person includes any type of entity or body of persons, whether or not it is incorporated or has a separate legal identity, and any executor, administrator or successor in law of the person; and
- (v) anything (including a right, obligation or concept) includes each part of it.
- (b) A singular word includes the plural, and vice versa.
- (c) A word which suggests one gender includes the other genders.
- (d) If a word or phrase is defined, any other grammatical form of that word or phrase has a corresponding meaning.
- (e) If an example is given of anything (including a right, obligation or concept), such as by saying it includes something else, the example does not limit the scope of that thing.
- (f) A reference to **including** means “including, without limitation”.
- (g) A reference to **dollars** or **\$** is to an amount in Australian currency.
- (h) A reference to **this document** includes the agreement recorded by this document.
- (i) Words defined in the GST Act have the same meaning in clauses about GST.
- (j) This document is not to be interpreted against the interests of a party merely because that party proposed this document or some provision in it or because that party relies on a provision of this document to protect itself.

2. Purpose of this Deed

The purpose of this Deed is:

- (a) to acknowledge the Landowner’s and the CHP’s agreement to the Development Consent;
- (b) to record the Landowner and the CHP’s binding agreement to enter into the Stage 2 Agreement at the time required under the Planning Agreement; and
- (c) to set out the key terms that will form the basis of the Stage 2 Agreement.

3. Key Terms of the Stage 2 Agreement

The Landowner and the CHP acknowledge and agree that the Stage 2 Agreement will include, at minimum, the following key terms:

- (a) details as to how the management of the Affordable Housing Dwellings and the Affordable Housing Building will be undertaken, at no cost to the CHP. For the avoidance of doubt, the responsibility for ongoing costs to advertise and manage the Affordable Housing Dwellings and the Affordable Housing Building are to be agreed between the Community Housing Provider and the Landowner, with those terms to be detailed in the Stage 2 Agreement;
- (b) a requirement for the Affordable Housing Building to have the Affordable Housing Restriction registered on title, prior to the management of the Affordable Housing Building by the CHP;
- (c) a requirement that all parties comply with the Housing SEPP (as applicable and as updated or amended from time to time), in respect of the Affordable Housing Dwellings contained in the Affordable Housing Building;
- (d) a specification of the size and layout of each Affordable Housing Dwelling included in the Affordable Housing Building and the design, construction fit-out specifications, as agreed between the Landowner and the CHP;

- (e) a requirement that the Landowner not amend, change or otherwise alter the size or layout of the Affordable Housing Dwellings, or the design, construction and fit-out specifications agreed between the Landowner and the CHP except with the written support of the CHP;
- (f) a specification of the process and timings for the Landowner to provide regular updates to the CHP on the Development Consent and any modifications to the Development Consent and the design, construction, fit-out of the Affordable Housing Dwellings and the commencement of management of the Affordable Housing Building;
- (g) processes for:
 - (i) ensuring the CHP is reasonably satisfied with the design, construction and fit-out of the Affordable Housing Dwellings and Affordable Housing Building; and
 - (ii) acceptance of the Affordable Housing Dwellings by the CHP following construction and fit-out, and issue of the Occupation Certificate, and prior to commencement of the management of the Affordable Housing Dwellings and Affordable Housing Building by the CHP;
- (h) a fair and reasonable dispute resolution process, and commencement of management of the Affordable Housing Building;
- (i) a right for the CHP to terminate the Stage 2 Agreement, without penalty, where the CHP reasonably believes the Landowner has breached any provision of the Stage 2 Agreement and that breach is incapable of remedy or has continued for 10 Business Days after the date the CHP gives notice requiring the breach be remedied;
- (j) a right for the Landowner to terminate the Stage 2 Agreement, without penalty, where the Landowner reasonably believes the CHP has breached any provision of the Stage 2 Agreement and that breach is incapable of remedy or has continued for 10 Business Days after the date the Landowner gives notice requiring the breach be remedied;
- (k) a requirement that the Landowner promptly rectify, at its cost, any Defects in the Affordable Housing Building identified by the CHP and notified to the Landowner during the Defect Liability Period;
- (l) a requirement for the Landowner to provide to the CHP copies of any warranties, guarantees, maintenance information or other material reasonably required by the CHP prior to the commencement of the management of the Affordable Housing Building;
- (m) a requirement for the CHP to provide the information required by the Landowner to provide an annual report to the City, and to verify or co-sign that report, in accordance with clause 2.3 of Schedule 3 of the Planning Agreement;
- (n) a requirement for the Landowner and CHP to notify the City 30 Business Days prior to a change of ownership or change of CHP of the Affordable Housing Building and/or Affordable Housing Dwellings once management has commenced;
- (o) where a change of Landowner or Community Housing Provider has occurred, a requirement for any incoming party to enter into a new Community Housing Provider Agreement for the management of the Affordable Housing Building and/or Affordable Housing Dwellings in accordance with the Community Housing Providers Act.

4. Compliance with Planning Agreement

- (a) The parties acknowledge and agree that the terms of the Stage 2 Agreement must be consistent with the Planning Agreement and this Deed.
- (b) In particular the parties must comply with the following obligations under the Planning Agreement:
 - (i) Provision of Stage 2 Agreement

The Landowner and the CHP must provide a copy of the proposed Stage 2 Agreement to the City in accordance with clause 3.3 of Schedule 3 of the Planning Agreement. The City may provide amendments to the Stage 2 Agreement to the extent such information is required by the Planning Agreement to be included in the Stage 2 Agreement, and the parties must ensure any such amendments are addressed in the Stage 2 Agreement prior to its execution.

(ii) Execution of Stage 2 Agreement

The Landowner and the CHP must execute the Stage 2 Agreement by the date specified in Schedule 3 of the Planning Agreement, being prior to any Construction Certificate for fit out and façade works for Building G and H.

(iii) Replacement Agreement if Stage 2 Agreement is terminated

If the Stage 2 Agreement is terminated for any reason, the Landowner must notify the City within 10 Business Days of the date of termination, and the Landowner must enter into a new agreement with another community housing provider within a further 2 months, or such other period as agreed in writing by the City, on substantially the same terms.

ANNEXURE D

Affordable Housing Covenant

1. DEFINITIONS

Act means the *Environmental Planning and Assessment Act 1979* (NSW) as amended or varied from time to time.

Affordable Housing has the meaning given in the Act.

Affordable Housing Building means the independent building in stratum that contains the Affordable Housing Dwellings in stratum on that part of the Land that has been approved in the Consent as Affordable Housing.

Affordable Housing Dwellings means the affordable housing dwellings contained in the Affordable Housing Building.

Community Housing Provider Agreement means the legally binding agreement between the Landowner and an Eligible Community Housing Provider that provides for the management of the Affordable Housing Building by the Eligible Community Housing Provider to operate as Affordable Housing.

Consent means the consent granted to Development Application [insert DA number] in accordance with the Act.

Conveyancing Act means the *Conveyancing Act 1919* (NSW) as amended or varied from time to time.

Council means the Council of the City of Sydney (ABN 22 636 550 790).

Eligible Community Housing Provider means an entity that provides community housing that is registered in NSW under the *Community Housing Providers (Adoption of National Law) Act 2012* (NSW), and that has a registration category of Tier 1, as that tier is defined in the Registrar of Community Housing NSW Local Scheme Tier Guidelines, as varied or replaced.

Land means the land contained within Folio Identifier [insert], also known as [insert address].

NSW Affordable Housing Ministerial Guidelines means the Affordable Housing Guidelines as defined in the regulations made pursuant to the Act, as amended or varied from time to time.

Owner means the registered proprietor of the Land.

2. TERMS

- (a) The Owner must have a Community Housing Provider Agreement in place for the Land.
- (b) Within 30 days of commencement of a Community Housing Provider Agreement for the Land, or any variation or novation of a Community Housing Provider Agreement, the Owner must provide a copy of the Community Housing Provider Agreement to Council.
- (c) The Owner must notify Council in writing of any change of Owner, or change to the Eligible Community Housing Provider that will manage the Affordable Housing Building

and/or be a party to the Community Housing Provider Agreement, at least 6 weeks prior to the proposed change.

(d) Within 3 weeks of the end of each financial year, the Owner must provide to Council an annual report on the utilisation of the Affordable Housing Dwellings and the Affordable Housing Building for that financial year that includes the following:

- (i) confirmation of the ownership of the Affordable Housing Building;
- (ii) confirmation the Community Housing Provider Agreement remains in place;
- (iii) in relation to each Affordable Housing Dwelling:
 - (A) confirmation that a residential tenancy agreement is in place;
 - (B) the market rent, as determined by the methodology set out in the NSW Affordable Housing Ministerial Guidelines;
 - (C) the discounted market rent;
 - (D) the income band of the household as per the NSW Affordable Housing Ministerial Guidelines; and
 - (E) the applicable rent charge inclusive of Commonwealth Rent Assistance.

(e) The annual report to be provided in accordance with clause 2(d) above must:

- (i) be verified or co-signed by the Eligible Community Housing Provider that is a party to the Community Housing Provider Agreement; and
- (ii) be submitted to Council via email to ahreporting@cityofsydney.nsw.gov.au, or such other email address nominated by Council from time to time.

3. GENERAL

(a) This positive covenant is for the benefit of Council and only Council has the right to release, vary or modify this positive covenant in accordance with section 88E of the Conveyancing Act.

(b) Any provision of this document which is unenforceable or partly unenforceable is, where possible, to be severed to the extent necessary to make this document enforceable, unless this would materially change the intended effect of this document.